

## 22STCV29823 22STCV29823

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-07-08

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Case Number: 22STCV29823 Hearing Date: July 8, 2026 Dept: 509

Otter Lake Farm, LLC v. Al Mizrahie, et al.

JUDGMENT CREDITOR'S MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

MOVING PARTY: Judgment Creditor Otter Lake Farm, LLC

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Otter Lake Farm, LLC, (Judgment Creditor) brought this unlawful detainer action against defendants Al Mizrahie and Alma Mizrahie (Judgment Debtors) for possession of a commercial property.

On February 9, 2023, Judgment Creditor obtained a stipulated unlawful detainer judgment.

In September 2025, the parties entered into a Conditional Post Judgment Occupancy Agreement that allowed Judgment Debtors to continue their occupancy while preserving the stipulated judgment.

On March 25, 2026, Judgment Creditor sought issuance of a writ of possession to enforce the judgment. Judgment Debtors opposed, arguing, among other things, that Judgment Creditor had created a new tenancy through the Agreement, that Judgment Creditor was required to prosecute a new unlawful detainer action.

On May 18, 2026, Judgment Debtors' Request to Stay Writ of Possession was denied, and this Court lifted the stay of execution.

On June 15, 2026, Judgment Creditor filed this instant motion to recover their reasonable attorney's fees and costs. Judgment Debtors did not file an opposition.

TENTATIVE RULING:

Judgment Creditor's Motion for Attorney's Fees is CONTINUED to August 10, 2026, 8:30 a.m.

Judgment Creditor is ordered to mail a copy of the moving papers, as well as a copy of this ruling, to both Judgment Creditors at their address of record in this case, to wit, 5243-5251 E. York Blvd., Los Angeles, CA 90042 (See, Judgment Creditors' Ex Parte Application, 4/28/26)

A courtesy copy of this tentative only shall also be served on Avedis H. Bekhloyan, Esq. by email at [email protected].

Judgment Creditor is to file a Proof of Service reflecting compliance with this ruling.

#### DISCUSSION:

#### Motion for Attorney's Fees, Costs, and Expenses

Code of Civil Procedure, section 685.080 requires a noticed motion. "The notice of motion shall be served on the judgment debtor. Service shall be made personally or by mail." (Id. at §685.080, subd. (b)(1).)

Here, this motion was served electronically on Avedis Bekhloyan, attorney for Al Mizrahie, on June 15, 2026. However, attorney Avedis Bekhloyan was not the attorney for Alma Mizrahie. (See Substitutions of Attorney, 5/18/26 and 6/22/26.) Therefore, as this motion seeks payment from both Al Mizrahie and Alma Mizrahie, both parties need to be served with the instant motion. By serving attorney, Avedis Bekhloyan only, service and notice of this motion has only been given to Al Mizrahie. As a result, the requirements for service under Section 685.080 have not been met as to Alma.

Accordingly, Judgment Creditor's motion is CONTINUED to August 10, 2026, for Judgment Creditor to effectuate proper service on all judgment debtors.

IT IS SO ORDERED.

Dated: July 8, 2026 \_\_\_\_\_

Randolph M. Hammock

Judge of the Superior Court